BUSINESS SERVICE AGREEMENT

FICTIONAL SAMPLE DOCUMENT — FOR SOFTWARE TESTING ONLY

Agreement No.: BSA-2026-047 **Effective Date:** 1 October 2026

This Business Service Agreement (the “Agreement”) is entered into by and between **BluePeak Technologies Pvt. Ltd.**, a fictional company with its principal office at 25 Innovation Park, Chennai, Tamil Nadu 600096 (“Client”), and **NovaSphere Solutions Pvt. Ltd.**, a fictional company with its principal office at 18 Digital Avenue, Bengaluru, Karnataka 560001 (“Service Provider”). The Client and Service Provider are collectively referred to as the “Parties.”

1. PURPOSE AND SCOPE

The Service Provider shall provide software support, application maintenance, data reporting, system monitoring, and related technical consulting services described in Schedule A. Services shall be performed in a professional manner and in accordance with the service levels stated in this Agreement.

2. TERM AND RENEWAL

The initial term shall begin on the Effective Date and continue for twelve (12) months. Unless either Party provides written notice of non-renewal at least sixty (60) days before the expiry date, the Agreement shall automatically renew for successive twelve (12) month periods.

3. FEES AND PAYMENT

The Client shall pay a fixed service fee of INR 1,20,000 per month plus applicable taxes. Invoices shall be issued monthly and are payable within thirty (30) days from the invoice date. Amounts overdue by more than fifteen (15) days may incur a late-payment charge of 2% per month, calculated on the outstanding amount.

4. SERVICE LEVELS

The Service Provider shall target 99.0% monthly availability for supported production services, excluding scheduled maintenance, force majeure events, and outages caused by third-party infrastructure outside the Service Provider’s reasonable control. Critical incidents shall receive an initial response within four (4) business hours.

5. CLIENT OBLIGATIONS

The Client shall provide timely access to systems, information, personnel, and reasonable cooperation required for performance of the Services. The Client is responsible for maintaining valid credentials and ensuring that information supplied to the Service Provider is accurate and lawful.

6. CONFIDENTIALITY

Each Party shall keep confidential all non-public business, technical, financial, customer, and security information received from the other Party. Confidential information shall not be disclosed to third parties except to authorized employees, professional advisers, or subcontractors who are bound by confidentiality obligations. These obligations shall survive termination for three (3) years.

7. DATA PROTECTION AND SECURITY

The Service Provider shall use reasonable administrative, technical, and organizational safeguards to protect Client data against unauthorized access, alteration, disclosure, or destruction. The Service Provider shall notify the Client without undue delay after becoming aware of a confirmed security incident materially affecting Client data.

8. INTELLECTUAL PROPERTY

Pre-existing software, tools, templates, methodologies, and know-how owned by either Party shall remain the property of that Party. Upon full payment of applicable fees, project-specific reports and deliverables created exclusively for the Client shall belong to the Client, excluding the Service Provider’s pre-existing materials and generic know-how.

9. WARRANTIES

The Service Provider warrants that Services will be performed with reasonable skill and care. Except as expressly stated, the Services are provided without warranties of uninterrupted operation or fitness for a particular purpose to the maximum extent permitted by applicable law.

10. LIMITATION OF LIABILITY

To the maximum extent permitted by law, neither Party shall be liable for indirect, incidental, special, consequential, or loss-of-profit damages. The aggregate liability of the Service Provider arising from this Agreement shall not exceed the total service fees paid by the Client during the six (6) months immediately preceding the event giving rise to the claim.

11. INDEMNIFICATION

Each Party shall indemnify the other against third-party claims arising from its gross negligence, willful misconduct, or material breach of applicable law. The indemnified Party shall promptly provide notice of the claim and reasonable cooperation.

12. TERMINATION

Either Party may terminate this Agreement for material breach if the breach is not cured within thirty (30) days after written notice. Either Party may terminate for convenience by giving ninety (90) days’ written notice. The Client shall pay all undisputed fees accrued through the effective termination date.

13. EFFECT OF TERMINATION

Upon termination, each Party shall return or securely delete the other Party’s confidential information, subject to legally required retention. Sections concerning confidentiality, intellectual property, payment obligations, limitation of liability, indemnification, dispute resolution, and any provisions intended by their nature to survive shall remain effective.

14. FORCE MAJEURE

Neither Party shall be liable for delay or failure caused by events beyond its reasonable control, including natural disasters, widespread telecommunications failures, government actions, war, civil unrest, or major infrastructure outages, provided that the affected Party promptly informs the other Party and takes reasonable steps to mitigate the impact.

15. DISPUTE RESOLUTION

The Parties shall first attempt in good faith to resolve disputes through senior management discussions. If unresolved within thirty (30) days, the dispute shall be referred to arbitration in Chennai, Tamil Nadu, in accordance with applicable Indian arbitration law. The language of arbitration shall be English.

16. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of India. Subject to the arbitration provision above, courts located in Chennai, Tamil Nadu shall have jurisdiction over matters arising from this Agreement.

17. ASSIGNMENT AND SUBCONTRACTING

Neither Party may assign this Agreement without the prior written consent of the other Party, except to an affiliate or successor in connection with a merger, restructuring, or sale of substantially all relevant assets. The Service Provider may use qualified subcontractors but remains responsible for their performance.

18. NOTICES

Formal notices shall be delivered by recognized courier or email to the designated business contact of the receiving Party. Notices shall be considered received upon confirmed delivery or, for email, upon receipt of a delivery confirmation without an automated failure notice.

19. ENTIRE AGREEMENT AND AMENDMENTS

This Agreement, including its schedules, constitutes the entire agreement between the Parties concerning the Services and supersedes prior discussions on the same subject. Any amendment must be in writing and signed by authorized representatives of both Parties.

20. SIGNATURES

By signing below, the authorized representatives confirm that they have read, understood, and agreed to the terms of this Agreement.

For BluePeak Technologies Pvt. Ltd.	**For NovaSphere Solutions Pvt. Ltd.**
Authorized Signatory: _____	Authorized Signatory: _____
Name: Priya Raman	Name: Arjun Mehta
Title: Director – Operations	Title: Managing Director
Date: _____	Date: _____

Schedule A — Service Deliverables

Deliverable	**Frequency / Target**
Application maintenance	Monthly
System monitoring	24×7 monitoring with incident escalation
Business reports	Monthly performance report
Technical consultation	Up to 20 hours per month
Critical incident response	Within 4 business hours

This document is entirely fictional and is intended solely for demonstration and testing of contract-analysis software. Company names, addresses, people, amounts, and terms are invented.